

## 23SMCV06065 23SMCV06065

County: los-angeles

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### TENTATIVE RULING

Defendant The Regents of the University of California's Demurrer to Plaintiff's Third Amended Complaint is SUSTAINED without leave to amend.

Defendant The Regents of the University of California shall prepare, serve, and submit a proposed judgment as per statute.

Defendant The Regents of the University of California to give notice.

Defendant The Regents of the University of California ("Defendant") demurs to the 11 causes of action alleged against it in Plaintiff John Doe ("Plaintiff")'s Third Amended Complaint ("TAC") on the ground that the claims are barred by the statute of limitations because Plaintiff does not sufficiently allege the existence of a "cover up" within the meaning of Code of Civil Procedure section 340.16, subdivision (e)(4)(A), and the requisite specificity for "cover up" within the meaning of the statute includes specific allegations of past conduct attributed to specific individuals.

Code of Civil Procedure section 340.16, subdivision (e)(1), provides that "[n]otwithstanding any other law, any claim seeking to recover damages suffered as a result of a sexual assault that occurred on or after the plaintiff's 18th birthday that would otherwise be barred before January 1, 2023, solely because the applicable statute of limitations has or had expired, is hereby revived, and a cause of action may proceed if already pending in court on January 1, 2023, or, if not filed by that date, may be commenced between January 1, 2023, and December 31, 2023," as occurred here with the filing of this action on December 29, 2023. Code of Civil Procedure section 340.16, subdivision (e)(2), provides that "[t]his subdivision revives claims brought by a plaintiff who alleges all of the following: [¶] (A) The plaintiff was sexually assaulted. [¶] (B) One or more entities are legally responsible for damages arising out of the sexual assault. [¶] (C) The entity or entities, including, but not limited to, their officers, directors, representatives, employees, or agents, engaged in a cover up or attempted a cover up of a previous instance or allegations of sexual assault by an alleged perpetrator of such abuse." The statute defines "cover up" to mean "a concerted effort to hide evidence relating to a sexual assault that incentivizes individuals to remain silent or prevents information relating to a sexual assault from becoming public or being disclosed to the plaintiff, including, but not limited to, the use of nondisclosure agreements or confidentiality agreements." (Code Civ. Proc., § 340.16, subd. (e)(4)(A).)

Plaintiff alleges that the offending conduct occurred from 1972 to 1974 (TAC ¶ 14), such that any claim based on this conduct would be time barred but for Code of Civil Procedure section 340.16, subdivision (e)(1). Plaintiff seeks to hold Defendant liable on the ground that "UCLA and its agents and employees knowingly engaged in a cover up of the abuse" alleged. (TAC ¶ 14.) As to the purported cover up, Plaintiff alleges that Defendant "actively covered up multiple sexual assaults over time from at least June 1968 to the present and prevented the information from becoming public," which included "(1) Maintaining secret files on physician misconduct complaints; (2) Using confidentiality agreements to silence victims; (3) Failing to terminate employees who have committed abuse; and (4) Failing to report criminal conduct to law enforcement." (TAC ¶¶ 79,

90.) Plaintiff also refers to a cover up relating to three professors. (TAC ¶¶ 40, 71-72.) Plaintiff further alleges that Defendant sought to hide evidence by "(1) maintaining secret files segregated from official personnel records; (2) using confidentiality agreements and NDAs to incentivize victims to remain silent; (3) establishing informal grievance procedures specifically designed to prevent information relating to sexual assault from becoming public; and (4) implementing document destruction policies to eliminate evidence of sexual misconduct complaints." (TAC ¶ 96.)

Again, the TAC does not allege sufficient facts about the purported cover up. Plaintiff again continues to refer to secret files, confidentiality agreements, failure to terminate, and failure to report. He points to confidential files, record destruction, confidential settlements, nondisclosure provisions, informal complaint procedures to avoid documentation, and a culture of secrecy. He asks the Court, Defendant, and the trier of fact to piece these allegations together to show that Defendant had a practice of covering up sexual assaults, but there remain insufficient facts to do more than speculate that there was a concerted effort to incentivize Plaintiff or other individuals to remain silence or to prevent information relating to the sexual assault from becoming public or being disclosed to Plaintiff. The statute seeks to revive claims specifically where there was a cover up by an entity, so it follows that Plaintiff is required to allege facts relating to that cover up. He has not done so here. Even if Plaintiff had sufficiently alleged a cover up here, which he has not, Code of Civil Procedure section 340.16, subdivision (e)(7)(C), now states that claims against public entities are not revived under the statute. The Court need not determine here, though, whether this is a new law or clarifying law, based on legislative history, because Plaintiff has failed to allege facts that a cover up occurred so as to revive his claim. Accordingly, Defendant The Regents of the University of California's Demurrer to Plaintiff's Second Amended Complaint is SUSTAINED without leave to amend.